

		<u>Sanctions</u> “Except as provided in subdivision (j), the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., § 2031.310(h).) The Court finds Plaintiff acted with substantial justification in opposing the Motion.
5.	DANIELS VS. SAN LEON APARTMENTS LLC 2025-01511127	MOTION FOR ORDER STAYING THIS ACTION UNTIL THE COMPLETION OF ARBITRATION Defendant San Leon Apartments LLC’s Motion to Compel Arbitration is GRANTED. Defendant moves to compel arbitration and to stay this action pursuant to Code of Civil Procedure section 1281.7 and consistent with the Federal Arbitration Act (9 U.S.C. § 1, <i>et seq.</i>) (“FAA”). Defendant’s objections are OVERRULED. <u>Legal Standard</u> Both state and federal law provide for enforcement of arbitration agreements. (Code Civ. Proc., §§ 1280 <i>et seq.</i>; 9 U.S.C. §§ 1 <i>et seq.</i>) The FAA governs contractual arbitration in written contracts involving interstate commerce, foreign commerce, or maritime transactions. (9 U.S.C. §§ 1, 2; <i>AT&T Mobility LLC v. Concepcion</i> (2011) 563 U.S. 333, 336.) Under the FAA, the court must compel arbitration of claims covered by an enforceable arbitration agreement. (9 U.S.C. §§ 2, 4.) The moving party may also seek a stay of the action pending the outcome of the arbitration. (9 U.S.C. § 3.) Similarly, under the Code of Civil Procedure sections 1281.2 and 1281.4, a party to an arbitration agreement may move to compel arbitration and stay the action if another party to the agreement refuses to arbitrate. “A petition pursuant to Section 1281.2 may be filed in lieu of filing an answer to a complaint. The petitioning defendant shall have 15 days after any denial of the petition to plead to the complaint.” (Code Civ. Proc., § 1281.7.) <u>Existence of Arbitration Agreement</u> An arbitration agreement governed by the FAA is enforceable “save upon such grounds as exist at law or in equity for the revocation of any contract.” (9 U.S.C. § 2.) “In determining the rights of parties to

enforce an arbitration agreement within the FAA’s scope, courts apply state contract law while giving due regard to the federal policy favoring arbitration.” (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236.) The court determines the existence of an agreement to arbitrate in a summary process. (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 164.) The trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination. (*Ibid.*)

The burden of persuasion is always on the moving party to prove the existence of an arbitration agreement with the opposing party by a preponderance of the evidence; however, the burden of production may shift in a three-step process. (*Gamboa, supra*, 72 Cal.App.5th at p. 164-165.) First, the moving party bears the burden of producing “prima facie evidence of a written agreement to arbitrate the controversy.” (*Id.* at p. 165.) The moving party can meet its initial burden by attaching to the motion or petition a copy of the arbitration agreement purporting to bear the opposing party’s signature. (*Ibid.*) Alternatively, the moving party can meet its burden by setting forth the agreement’s provisions in the motion. (*Ibid.*) For this step, “it is not necessary to follow the normal procedures of document authentication.” (*Ibid.*)

If the moving party meets its initial prima facie burden and the opposing party does not dispute the existence of the arbitration agreement, then nothing more is required for the moving party to meet its burden of persuasion. (*Gamboa, supra*, 72 Cal.App.5th at p. 165.) However, if the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement. (*Ibid.*) The opposing party can do this in several ways. (*Ibid.*) For example, the opposing party may testify under oath or declare under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement. (*Ibid.*)

If the opposing party meets its burden of producing evidence, then in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties. (*Gamboa, supra*, 72 Cal.App.5th at p. 165.) The burden of proving the agreement by a preponderance of the evidence remains with the moving party. (*Ibid.*)

Here, Defendant seeks to compel arbitration pursuant to a document titled “Addendum for Arbitration of Disputes and Class Action Waiver” (“Arbitration Agreement”). (Giron Decl., ¶ 6, Ex. B.) The Arbitration Agreement is attached to a Lease Agreement entered into by Plaintiff for an apartment unit at the San Leon Apartments located at 115 San Leon, Irvine CA, with a lease term of 5/1/23 –

5/31/24. (Giron Decl., ¶ 5, Ex. A.) The incident at issue in this action occurred on 2/22/24, during the Lease term. Even if it occurred after the Lease term expired, the Lease provides that it “shall automatically continue from month to month” and in that event “the terms and conditions of the Lease shall apply” (Giron Decl., ¶ 5, Ex. A, ¶ 2.1.)

Plaintiff signed both the Lease and Arbitration Agreement on 4/7/23. (Giron Decl. ¶¶ 5, 6, Exs. A, B.) Plaintiff also initialed the Arbitration Agreement in two places acknowledging she has access to the internet and had an opportunity to review the JAMS rules and that she had an opportunity to seek the advice of counsel regarding arbitration. (Giron Decl. ¶ 6, Ex. B.)

The Arbitration Agreement provides in relevant part:

1. Arbitration of Disputes. Any dispute, claim or controversy arising out of or relating to this Lease or your tenancy with Landlord, including the breach, termination, enforcement, interpretation or validity thereof, and including the determination of the scope or applicability of this provision to arbitrate (“Claim” or “Claims”) shall be determined by binding arbitration in the County in which the subject Premises is located, before one neutral arbitrator. Except for the exclusions listed below, arbitration shall be the exclusive and binding remedy for any Claims between the Parties and shall be used instead of any court action or jury trial, which are hereby expressly waived. The Lease and this arbitration and class action waiver Addendum shall be governed by, and all questions and disputes regarding arbitrability shall be determined in accordance with, the Federal Arbitration Act, 9 U.S.C. Sections 1-16, notwithstanding any other choice of law provision. The arbitrator shall have the exclusive authority to resolve any Claims, including any dispute relating to the interpretation, applicability, enforceability or formation of this agreement and any claim that all or any part of this agreement is unconscionable, void or voidable.

(Giron Decl. ¶ 6, Ex. B.)

The following bold capitalized text appears directly above Plaintiff’s signature:

NOTICE: BY SIGNING IN THE SPACE BELOW YOU ARE AGREEING TO HAVE ANY DISPUTE ARISING OUT OF THE MATTERS INCLUDED IN THE ARBITRATION OF DISPUTES PROVISION DECIDED BY NEUTRAL ARBITRATION AS PROVIDED BY THE FEDERAL ARBITRATION ACT AND YOU ARE GIVING UP ANY RIGHTS YOU MIGHT POSSESS TO HAVE THE DISPUTE LITIGATED IN A COURT OR BY JURY TRIAL. BY

SIGNING BELOW YOU ARE GIVING UP YOUR JUDICIAL RIGHTS TO DISCOVERY AND APPEAL, UNLESS THOSE RIGHTS ARE OTHERWISE SPECIFICALLY INCLUDED IN THIS ADDENDUM. IF YOU REFUSE TO SUBMIT TO ARBITRATION AFTER AGREEING TO THIS PROVISION, YOU MAY BE COMPELLED TO ARBITRATE UNDER THE AUTHORITY OF APPLICABLE LAW. YOUR AGREEMENT TO THIS ARBITRATION PROVISION IS VOLUNTARY.

I HAVE READ AND UNDERSTAND THE FOREGOING AND AGREE TO SUBMIT DISPUTES, AS DESCRIBED ABOVE, TO NEUTRAL ARBITRATION.

(Ibid. [emphasis in original].)

In addition to attaching the Arbitration Agreement to the motion, Defendant also set out the above relevant terms verbatim in the motion. Thus, Defendant has met its initial burden.

Further, because the Arbitration Agreement explicitly provides that it “shall be governed by” the FAA, “notwithstanding any other choice of law provision”, Defendant has established the FAA applies. (See *Victrola 89, LLC*, supra, 46 Cal.App.5th at pp. 345-346 [where arbitration agreement states its enforcement is governed by the FAA, both the procedural and substantive provisions of FAA apply].)

Plaintiff does not dispute the applicability of the FAA. Nor does Plaintiff dispute the existence or validity of the Arbitration Agreement. Instead, she only argues her trip and fall claims do not arise out of the Lease Agreement.

Plaintiff’s arbitrability arguments are improperly made before this court. Such questions are to be determined by the arbitrator pursuant to the terms of the Arbitration Agreement. When parties “clearly and unmistakably” demonstrate their intent to have the arbitrator decide arbitrability, those issues must be referred to the arbitrator. (*Rent-A-Center, W., Inc. v. Jackson* (2010) 561 U.S. 63, 69, 70, fn. 1; *Tiri v. Lucky Chances, Inc.* (2014) 226 Cal.App.4th 231, 240-242 [confirming the analysis is the same under both state and federal law].)

Here, the Arbitration Agreement clearly and unmistakably provides “[t]he arbitrator shall have the exclusive authority to resolve any Claims, including any dispute relating to the interpretation, applicability, enforceability or formation of this agreement and any claim that all or any part of this agreement is unconscionable, void or voidable.” (Giron Decl. ¶ 6, Ex. B.) Plaintiff makes no argument to the contrary. In fact, Plaintiff’s opposition is silent as to the

		delegation clause. The court therefore finds the Arbitration Agreement, including the delegation clause, is valid and enforceable. (See <i>Rent-A-Center, W., Inc.</i>, supra, 561 U.S. at p. 72 [“unless (the opposing party) challenged the delegation provision specifically, we must treat it as valid under § 2 (of the FAA), and must enforce it under §§ 3 and 4, leaving any challenge to the validity of the Agreement as a whole for the arbitrator”].) The motion is GRANTED. The Court STAYS this action pending resolution of the parties’ arbitration. (Code Civ. Proc., § 1281.4; 9 U.S.C. § 3.) The Court sets an OSC re: ADR for 12/4/2026 at 9:00 a.m., in Department C32.
6.	ONE LLP VS. MOSES 2019-01086815	MOTION FOR ORDER TO STAY PROCEEDINGS Defendant Jeff Moses’s Motion to Stay Enforcement Pending Appeal is DENIED. There is no proof of service filed showing the motion was served on Plaintiff. (Cal. Rules of Ct., rule 3.1300(c) [“Proof of service of the moving papers must be filed no later than five court days before the time appointed for the hearing.”].) On 4/21/26, Defendant filed a document entitled “Proof of Service” under ROA 362 which is an email reflecting Court eFiling of a “Motion – Other” and “Declaration – Other.” However, this is not a proof of service because it does not adequately identify the motion or state by what means other parties were served with the documents. Defendant asserts he is a 60+ year old man with no income who can barely afford basic living expenses. However, Defendant does not submit admissible evidence demonstrating his inability to pay such as a sworn declaration with financial records demonstrating inability to pay. Moreover, Defendant provides no authority demonstrating the court can properly issue a stay in this instance. Money judgments may be stayed pending appeal only upon posting security, usually in the form of a bond or undertaking. (Code Civ. Proc., § 917.1(a)(1) and <i>Dowling v. Zimmerman</i> (2001) 85 Cal.App.4th 1400, 1429.) There is no indication Defendant posted a bond or undertaking for his appeal. Based on the foregoing, the motion is DENIED.